

Arbitration Policy

If an employment dispute arises while you are employed at the Company, we require any such dispute to be settled exclusively by binding arbitration under the federal Arbitration Act. Any dispute associated with employment, termination of your employment, discrimination, harassment, etc. will qualify for arbitration resolution. This arbitration shall be the exclusive means of resolving any dispute arising out of your employment or termination from employment and employees in any court or any forum can bring no other action.

Exception for sexual assault and sexual harassment claims: Under the federal Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2022, this arbitration requirement does not apply to disputes involving an allegation of sexual assault or sexual harassment. For those claims, you may choose, at your election, to pursue the matter in arbitration or in court, notwithstanding any other provision of this policy.

By simply accepting or continuing employment, you agree that arbitration is the exclusive remedy for all other disputes arising out of or related to your employment with the Company. In addition, both the Company and you agree to waive all rights to a civil court action regarding your employment and the termination of your employment, except as provided above. Only the arbitrator, and not a judge nor a jury, will decide the dispute, except as provided above.

If you decide to dispute an alleged incident during your employment, you must deliver a written request for your decision to arbitrate to the HR Department. You will have up to one (1) year from the date of termination, or one (1) year from the date on which the alleged incident(s) or conduct occurred to make such request. You will also have up to fourteen (14) calendar days to respond to each communication from the Company regarding the selection of an arbitrator and the scheduling of a hearing.

If the Company does not receive a written request for arbitration from you within one (1) year, or if you do not respond to any communication from the Company about the arbitration proceedings within fourteen (14) calendar days, you will have waived any right to raise any claims arising out of the original issue.

The arbitrator will be selected by both parties from a list of available representatives. You and the Company shall each bear respective costs for legal representation at any such arbitration. The parties, if any, shall share the cost of the arbitrator and court reporter, equally.

Also referred to as Alternative Dispute Resolution (ADR), arbitration is becoming more popular as a trusted means to quickly and fairly rectify issues without sacrificing employee's rights. When binding arbitration is used as the sole method for resolving legal conflict, costs are generally less and the resulting decision is available without delay.

Due to today's litigious society, more employers are choosing to include Arbitration in their workplace policies. Those interested should contact an attorney familiar with arbitration law (including the federal Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2022 and applicable state arbitration statutes, such as the Uniform Arbitration Act or Revised Uniform Arbitration Act as adopted in their state) who can assist with arbitration compliance in their state.